

WEEK 3 · THE CATEGORY OF CHILD

CLASS 1

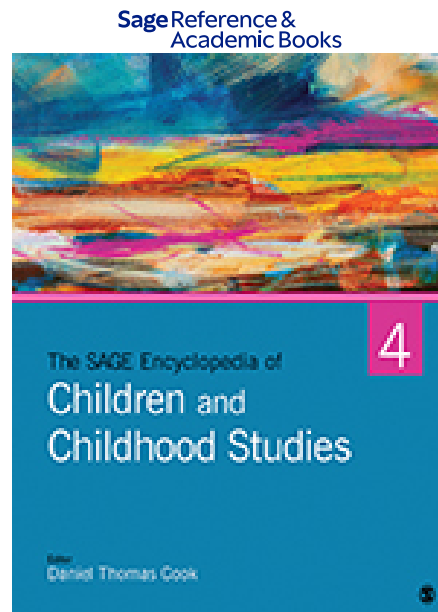
Modernity and the Child Figure

READING 1

Modernity – Rollo

READING 2

“Colonial Modernity and the ‘Child Figure’” in *Childhoods in India* –
Balagopalan



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Modernity

Modernity refers to a historical period characterized by major cultural transformations in Europe, beginning in the 15th century and reaching its pinnacle in the mid-20th century. During this period, there were important shifts in economic and political organization centered around the gradual displacement of feudal monarchy by liberal democracy and capitalism. Hallmarks of this shift to modernity included the privileging of reason, critical philosophical inquiry, a scientific understanding of the natural world, and a spirit of aesthetic innovation. Together, these ideals informed the formation of a secular, humanist, and materialist culture that increasingly asserted the authority of reason and technical progress in contradistinction to static premodern cosmologies governed by myth, superstition, ritual, and religion.

Ideas of children and childhood also shifted dramatically. The figure of the child came to be situated in two very distinct ways: first, as the embodiment or exemplar of irrational and nonauthoritative premodernity and, second, as a beneficiary of modern liberal egalitarian rights. Because the child came to occupy both these conceptual positions simultaneously, the category of childhood is still a site of serious confusion and debate, split between the modern humanist paradigm of children recognized as *being* human and the modern developmental paradigm of children *becoming* fully human adults. What these distinct approaches share is that both *being* and *becoming* ideals presuppose the subordination of children to systems of regulation and surveillance within a modern rationalized bureaucratic state apparatus. This entry briefly describes how these two paradigms of the child became so prevalent, how they currently inform conceptions of modernity, and the possible alternative conception of children as *belonging*.

Being and Becoming the Child

The modern idea of the child as *becoming* fully human has its roots in ancient Greek thought and medieval Christian doctrine, before becoming central to framing the emergence of Enlightenment and the changing world. The medieval model of the child as born into sin and *becoming* saved through faith served as a template of teleological development upon which Enlightenment thinkers would eventually come to categorize cultural changes in Europe as embodying progress from an irrational premodernity to a fully rational modernity. The figure of the child is central rather than incidental to explanations of this cultural shift. A young child, by virtue of the absence of reason and lack of language, is the antithesis of a modern human being. In this regard, the child is a perpetual internal challenge to modern institutions, which are viewed as a bulwark against possible regression of Enlightenment culture into the superstition and violence indicative of an immature or

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childish society. Hence, the child is not a simple metaphor for civilizational immaturity but, rather, stands as the living embodiment of degraded premodernity. The developmental paradigm reflects the modern vision of human perfectibility, which presupposes the rational adult as the pinnacle of human development and, consequently, situates children as little more than *potential* adults. At the same time, modernity features a parallel vision of the child as a fully human *being*. As a human *being*, as opposed to a mere *becoming*, the child is understood to be a holder of certain rights. That said, the idea that children are also premodern beings means that adults are obligated to usher them into modernity through force and discipline if necessary.

Common to both models is the view of childhood as a problem to be overcome—a state of *being* premodern but also of compelling children to *become* modern. Because this process is constantly under threat of being obstructed or halted, it requires intervention and management by mature, civilized adults. For this perspective, any breakdown in the process of achieving adult capacities is considered a failure and a regrettable interruption of the individual human *telos*. Where fully human agency is defined in terms of the physical and intellectual abilities associated with adulthood, anything failing to meet this threshold is considered a *disability*. There are, thus, troubling elements of ableism inherent in the modernist developmentalist model of childhood.

Likewise, although modern humanist thought ostensibly affirms the equality of all human beings, the binary opposition of adult to child serves as a cultural model in which humanity is divided between, on the one hand, civilizationally mature subjects who possess the authority of reason and, on the other hand, civilizationally immature objects who adhere to tradition, affective bonds, and concrete relationships. Modern society is considered mature and superior to premodern societies, which are depicted as cultures that childishly adhere to traditional religious or otherwise untested explanations of the world and social relations. Unenlightened premodern societies are considered unruly children, immature, and inherently prone to uncivilized barbarism. Thus, modern Western literature is replete with depictions of non-European peoples as civilizationaly immature or developmentally delayed *child races*.

Let us now turn to how the paradigms of being and becoming figure in the signature domains of modernity: economics, politics, science, philosophy, and art. Because they lack the requisite capacities for objective reasoning, children, especially very young children, are not understood as full agents. Because they lack the authority of reason, for example, they cannot fully participate as democratic citizens, business entrepreneurs, scientific authorities, philosophical specialists, or competent artists. Exploring these five domains of modernity, we can see that they are constructed both in opposition to the child as the archetype of premodernity and as a domain of rights held by children.

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To begin, modern capitalist economics is structured around the dynamics of individual interests, innovation, and labor. To the extent that young children are only *becoming* agents and lack full reason, it is presumed that they do not possess an understanding of their own interests let alone the interests of others sufficient to engage in economic exchanges. They are also observed to be deficient with respect to the experience and expertise required to participate as an informed consumer or business owner. Because children are mere *becomings*, child labor is viewed as potentially exploitative and, perhaps more significantly, as interfering with opportunities for education. Increasingly, children are understood not as laborers but as *the passive objects* of labor. At the same time, however, the modern view of the child offered by child liberationists tends to depict them in terms of *being* agents with the same or similar rights as adults. To the extent that they possess reason, then, children should have a recognized right to work and make a living, to be entrepreneurial, if they so choose. And so we see that there are hazards to both modern economic interpretations of the child. Whereas the *becoming* model relegates children to a passive, premodern subordinated existence, the *being* model places children in jeopardy of participating in exploitative market economies to the neglect of other life opportunities.

In the arena of liberal democratic politics, collective decision making is predicated on the use of reason to come to an agreement or compromise on issues of the distribution of scarce resources and recognition of equal worth in a diverse but politically bounded community. Although recognized as possessing formal political equality as citizens, children are nevertheless precluded from participating in politics on the grounds that they do not have sufficient reasoning capacities to understand the complexity of economic and social issues, nor are they thought to have the necessary experience and reasonability required to participate in public deliberations. In this view, children are only *becoming* future citizens. Within the liberal divide between public and private life, children fall squarely in the domestic sphere under the auspices of parental authority and education. The domestic realm is considered nonpolitical because collective decision making is viewed as the purview of reason rather than of affective bonds and relationships, the markers of premodern social and political organization. By contrast, much as they argued with respect to rights of children to participate in the labor market, child liberationists tend to argue that children should have the right to vote. Again, there are tensions. We might think that the modern democratic ideal of inclusion is diminished by the view that children should be categorically excluded from formal decision making, but there are also clear hazards in subjecting children to the risks of political life.

In the domain of science, progress is associated with the ostensibly objective study of natural phenomena whereby highly educated, trained, and specialized individuals using experimental methods attempt to develop

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more accurate understandings of, and technological solutions to, emerging problems in domains such as health and medicine, engineering, and information technologies. As with politics and economics, children as merely *becoming* agents lack the basic training and experience to participate. For this reason, children often become the objects of scientific study and theorization, as in fields such as psychoanalysis and developmental psychology. Yet in recognizing children as *beings*, we may also view childhood play and curiosity as a legitimate form of scientific inquisitiveness and experimentation. This natural propensity for worldly exploration has led some to call children natural scientists.

Theological inquiry into the nature of God and humanity's place in creation were disaggregated in the modern period into increasingly secular philosophical inquiries into the nature of being, knowledge, morality, and beauty. As they are in the domain of economics, politics, and science, children are often the objects of philosophical investigation but not as philosophers themselves. The cognitive feats of philosophical abstraction and formulation are beyond the capacities of children who have yet to *become* adults. To that end, philosophy often borrows from scientific literature to argue that children are developmentally incapable of grasping ideas related to moral universalism and lack the perspective-taking faculties necessary for thinking about moral or ethical problems from a global perspective. These faculties are seen as necessary to guide modern thinking on issues of collective decision making, economic distribution, and the possibility of scientific objectivity. By contrast, an approach to children that interprets them as *beings*, as in the work of Jana Mohr Lone, will sometimes depict children as the original philosophers. Children tend to question received wisdom and established social norms, and they regularly ask questions related to being, knowing, norms, and rules that span the genres of philosophical inquiry.

Finally, modern art is characterized by a spirit of experimentation and innovation in both technique and medium. Modern art is viewed by many as inherently political, as offering a commentary or critique of society. Pablo Picasso's painting *Guernica*, for instance, breaks stylistically with premodern artistic techniques while also reflecting the modern horrors of the Spanish Civil War. As such, the painting is viewed as an exemplar of modern reflective artistic critique. Although frequently the muse and object of art, children are rarely viewed as competent authors or audiences. Most modern art assumes that artists and audiences communicate through a shared or common set of experiences that are considered beyond the child. The modern vision of the child as a *being*, by contrast, inherits from the Romantic traditions an interpretation of children as natural artists, and their creations as an important contribution of pure expression unclouded by an ideological understanding of the world and others. As Picasso once famously quipped, "All children are artists. The problem is how to remain an artist once he grows up."

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In each of these domains of modernity, the *being* and *becoming* paradigms of the child can be seen to subordinate children by associating them with degraded notions of premodern practices and ideas. A third approach to the figure of the child, sometimes associated with the idea of *belonging*, seems to strike a middle ground. The *belonging* model recognizes the agency and responsibility of the child as a *being* who defines their roles and rights *in coordination with* a community as opposed to having those rights and responsibilities imposed by adults. The model also points to the community's responsibility to recognize the relations of mutual emotional and psychological dependence according to which all members are *becoming* agents with inevitably diverse physical and intellectual capacities. By focusing on the child's mutual relations of dependency with others, the *belonging* model dispenses with the idea of the child as an individual isolated rights holder while also rejecting the idea that the child alone (never the adult) is situated in a process of change and development.

See also [Ageism](#); [Autonomy](#); [Child as Other/Stranger](#); [Colonialism and Childhood](#); [Postcolonial Childhoods](#)

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1 Colonial modernity and the ‘child figure’

Reconfiguring the multiplicity in ‘multiple childhoods’

Sarada Balagopalan

The near global ratification of the United National Convention on the Rights of the Child brought the lives of marginal children in India under intense global scrutiny. This heightened visibility tended to read these children primarily as ‘victims’ and was backed up by empirical studies that attested to their harsh realities and the attendant urgency to take action. Seldom separable from the imperatives of policy-making, these studies often contrasted the children’s present ‘victimisation’ against a more utopian landscape of a normative childhood that was marked most prominently by enrolment in school. As the key site of a normative childhood, the space of the school was viewed as that which would recalibrate a child ‘victim’ to a child with a future, and this binary reading made any further analysis around the ‘child victim’ appear as unnecessary and superfluous. In stark contrast to this policy landscape, the discipline of ‘childhood studies’ derived its intellectual energies through its interrogations around prevailing understandings of children as passive. In a marked departure from traditional child research conventions, James and Prout (1997) advocated a focus on children’s own conceptual architecture. They drew on Philippe Aries to frame childhood as socially constructed, historically contingent and therefore multiple.¹ This recalibration of childhood has produced research that has over the years denaturalised the assumed universality of concepts like biological age, adult-child differentiation, notions of childcare and children’s work and the affective investments adults make in children. In all of this research, ‘childhood’ gets deployed as an already available, though contextually qualified register, whose multiplicity serves to strengthen rather than vilify its obviousness.

Elsewhere I have critically interrogated the relations of power that continue to underlie the apparent division between a singular, normative childhood versus ‘multiple childhoods’ (Balagopalan, 2011, 2014). I have argued that the project of liberal tolerance that underlies

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the latter has inadvertently set up a ‘separate but equal’ comparative register for understanding the lives of marginal children in the global South. In this chapter I want to push, expand upon and thereby further problematise this essentialising of difference that I believe underlies ‘multiple childhoods’ through exploring another historical moment that purposefully evoked and set in place the construction of children’s lives as ‘multiple’. This was the period of colonial modernity during which the colonial state recalibrated the lives of native children. The state worked to secure native children within modern discourses of education, discipline and protection, while it simultaneously produced their ‘cultures’ as those that predetermined the limits of these children’s inclusion within this modern apparatus.

In this chapter, I argue that these colonial logics worked to produce the ‘child figure’ rather than ‘childhood’ as the key site of intervention for the colonial state. In foregrounding these ‘child figures’ from various sites in the colony, both institutional and non-institutional, this chapter is attempting to address two interrelated concerns. First, this chapter seeks to historically deconstruct the idea of ‘multiplicity’ by situating its emergence within a more fraught, imperial colonial imaginary and, second, through this argument the chapter hopes to adequately open up the question around why research on present-day marginal ‘childhoods’ in the post-colony would need to factor in the constitutive difference that the emergence of ‘child figures’ rather than ‘childhood’ exercises on our framing of children’s everyday realities.

This chapter consists of three sections, the first of which engages the crucial distinction that the chapter draws between the ‘child figure’ and ‘childhood’ through a brief discussion on the consolidation of ‘childhood’ in the modern West. As a process that got consolidated over several centuries, and, given the immense body of work that exists on it, a summary would be impudent if not impossible. Instead, what I attempt to do in this section is to highlight the interlinked imaginaries that helped secure an apparatus of protective care that produced a modern Western ‘childhood’ as a legitimate and agreed-upon ordering of ‘biological immaturity’. The colonial state’s mobilisation of ‘culture’ to signal the limits of native children’s inherent proclivities and future capabilities is quite unlike the efforts in the modern West where, from the 18th century onwards, the ‘child figure’ was increasingly drawn into a new configuration of the social. This securing of care around disparate groups of children in the modern West included, among other mechanisms, class-specific pedagogies, surveillance and regulation, all of which helped produce ‘childhood’ (as indexed in a

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modern notion of protection tied to numerical age) as a shared ordering of biological immaturity.

On the other hand, as section three of this chapter outlines, the colonial state’s production of multiple ‘child figures’ was precisely that which drew upon the ‘cultural’ differences that these native children represented within a politics of colonial liberal accommodation of native diversity. The third section draws on archival literature to flesh out different sites – of the juvenile reformatory and the ‘school’ – in which the ‘child figure’ was constructed by the colonial state. The state’s accommodation of this diversity was a central feature in the introduction of modern apparatus of discipline and protection around the ‘child’ in the colony. Though this apparatus reflected humanist constructions around the ‘child’ that underlay emergent ideas of ‘protection’ in the metropole, in the colony these ideas were indexed within a more extractive logic. The term ‘child figure’ is thus used with reference to the class- and caste-specific multiplicity that the absence of a liberal reading of biological immaturity produced in the colony, a reading in which the ‘potentiality’ and ‘mutability’ of the child was precisely that which was instrumentally reworked by the colonial state.

In effect then, even a supposedly universal marker like ‘biological age’ circulated less as an acceptable shared index in the colony. This was not because native ‘cultures’ could not understand and integrate this new measure. Rather, the legal and disciplinary apparatus by which this measure became available had already produced the ‘child’ as multiple, with this multiplicity tied to a gendered logic of reproducing and formalising existing caste hierarchies within modern tenets of discipline and training. The final section explores how recognising this colonial past of multiple ‘child figures’² might work to produce a more critical reconstellation of ‘multiple childhoods’, that is, a reading in which interdisciplinary investigations into the historic mediation of normative categories like ‘age’ and ‘protection’, come to figure quite centrally in ethnographic research on children’s lives in the global South.

The consolidation of ‘childhood’ in the modern West

This subtitle is audacious (and outdated) because, as a process that got consolidated over several centuries, research on the rise of ‘childhood’ in the modern West includes detailed historiographical research on children and also forms part of a wider interrogation of political economy, moral philosophy, imperialism and new imaginations of the poor, work and self-discipline. It was within these interlinked domains

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that the child figure got deployed and acted upon within emerging technologies of governmentality, including most importantly an apparatus of care and surveillance that produced a modern Western ‘childhood’ as a legitimate and agreed-upon ordering of ‘biological immaturity’. Turmel (2008) states that the social technologies that were set up between 1890 and 1940, aided in constructing children into a separate and discrete category within the imagination of the national population in the modern West. According to him, this period was divided into two phases. The first period, between 1890 and 1915, was one in which public policy dominated the imagination of transforming children’s lives, while in the second phase, between 1916 and 1940, the technologies of measurement provided by the human sciences led to the necessary impetus for acting on children’s lives.

Foucault (1995, 2009) has drawn attention to this through a different lens, namely through the ways in which the modern state’s imperative to develop the *oikos*, or the economy, intimately involved the ‘family’ form. As the ‘hinge’ that would link the individual to the economy, it was the family which tied the ‘care of the self’ together with the logics of various disciplinary systems, including the school and the factory. In this reworking of the caring control exercised by the patriarch over the domestic realm, into the wider level of the state, it was the ‘child’ who served as the main rationale for why an interventionary apparatus required to be institutionalised.

As Foucault (2006) elaborates, the growth of psychiatry and the crafting of new technologies around motherhood aided in the naturalisation of the reform of the ‘family’. In the ensuing dialectic between family sovereignty and disciplinary power, the ‘child’ emerged as the central figure upon whom the ‘watchful family eye’ became a psychiatric gaze, linking together new discourses on child supervision, child-rearing and motherhood. Additionally, these discourses were intimately worked into the tropes of race, nation and gender that the modern state deployed to craft a more homogeneous citizenry. This recalibration of family sovereignty and heterogeneity invested enormous pedagogic energies into developing the ‘child’ into a moral citizen, through inculcating in this figure the skills of self-discipline as a mode of self-governance (Foucault, 1995).

From the 18th century, the logics of compulsory schooling and public hygiene got variously deployed to work on new ideas of ‘childhood’, not through coercion but through producing particular class-specific subjectivities as the desirable norm. Donzelot’s (1979) research on 19th-century French society foregrounds the earlier intensification of discourses around the family that mobilised the ‘child’. He discusses the ways in which significant changes in family law from

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tutelage to contract, through which the liberal idea of family was introduced, aided substantially in securing the desire for mobility or the ‘upward dynamic operating between the working-class and the bourgeois family’ (p. xvi). He outlines how by the end of the 19th century, the new discipline of social work set in place a ‘tutelary complex’. This complex effectively deployed three tropes of the judicial, the psychiatric and the educative to engage the working-class family in a process of reform that brought these families and their minors under intense and regular surveillance. Bourgeois liberalism invested enormous pedagogic energy in the ‘child’, and Donzelot argues that in upper-class families, this ‘protected liberation’ was secured through the mechanism of medical instruction for the mother and schooling for the child that these families adopted quite easily. These new ideas of mothering, medicine, schooling and psychiatry effectively combined to continually script and naturalise the psychological and social distinctiveness of the upper class. In stark contrast to this, Donzelot states that the working-class family was reorganised through a set of institutional constraints or a ‘supervised freedom’. Their travel within the juvenile courts and the social welfare system meant more rigorous regulatory mechanisms which facilitated the slippage between ‘children in danger’ and ‘dangerous children’, thereby making self-evident the disciplinary gaze on poor families. The French state thus worked upon the poor child through an apparatus of surveillance, regulation and coercive enforcement which substantially differed from the more persuasive pedagogic mechanisms it utilised with upper-class children, but the imperative that undergird these different tactics was the setting in place a consolidated, shared imagination of ‘childhood’.

As Donzelot’s work discloses, a multiplicity of ‘child figures’ inhabited the social landscape of the 19th-century France and the gradual consolidation of ‘childhood’, linked to anxieties of creating citizen-subjects, was achieved through class-specific techniques that worked to instil a shared imagination. This multiplicity of child figures is also evident in the 18th-century England where the working of the poor laws generated the increasing need to name, categorise, differentiate and segregate populations (Cunningham, 1991; Himmelfarb, 1983). This affected the lives of children as distinctions between the types of the poor mapped onto different school spaces set up to cater to these differences. Unlike a few grammar schools that provided a classical education, to children of the ‘respectable’ working classes as well as to children of the ‘honest poor’ like artisans who were viewed as both able and ambitious, charity schools served the very poor like domestic servants, paupers and children of labourers who were viewed as uninterested in education. By the mid-19th century, the earlier replacing of

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charity schools by ‘industrial schools’, was further diversified into day schools for the working classes, Sunday schools as well as the ‘ragged’ schools for those of the very poor who were ‘want of character’, while ‘children of the state’ like the juvenile delinquent attended reformatory schools. Despite this high level of differentiation, what is interesting about its arrangement was that these spaces were underwritten by universal ideas of rehabilitation and redemption that it deployed. As evidenced in the writings of Mary Carpenter, an influential figure in social reform in Victorian England, both idioms of religion and love underlay the regimen set in place to socialise these children into productive and caring adults and, more importantly, eventually justified the setting up of a single, comprehensive, state-run infrastructure of schools (Carpenter, 1851). This new regiment, as several theorists have pointed out, was quite central to emerging theorisations around political economy, moral philosophy and new imaginations of self-discipline (Rose, 1998; Shuttleworth, 2010). As a result, this shift from ‘child figure’ and ‘childhood’ was as much a result of social policies which reflected a shared and agreed-upon shift in adult imagination of children’s worth, a shift that had in the context of the Industrial Revolution caused Karl Polanyi to remark that social and not technological invention had been its principle intellectual source (Stanfield, 1986).

Quite unlike the modern West, where the ‘child figure’ exercised a central role in interweaving the disciplinary and the juridical subject within a broader discourse on citizenship, in the colony, citizenship was precisely that which could not be granted to the natives. This inability to confer subjecthood on the natives marked the ‘rule of colonial difference’ or the racism inherent in the colonial project (Chatterjee, 1993). The ‘colony’ was after all a space of government marked by the requirements of the absence of equality. It was where adult natives appeared as ‘child-like’ noble savages (Nandy, 1992) and where the very meaning of efficient colonial administration meant adapting to the supposed heterogeneity of the natives as made visible through technologies of documentation and enumeration (Cohn, 1996; Dirks, 2001). The materialisation of ‘child figures’ in colonial India was animated by these less than ideal logics and not within a more humanist reading of the potentiality of the ‘child’ and the attendant liberal reconfiguring of biological immaturity.

Indian colonial modernity in the early 20th century and ‘child figures’

The historical relationship between colonial exploitation and the Industrial Revolution, the indisputability of modernity in the ex-colonies,

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as well as the colonial core that underlies the working out of modernity in the metropole, all index the interconnections, unevenness and the complexities of the political economic logics that marked colonial modernity (Chakrabarty, 2002). Much of the scholarship on colonial modernity in the Indian context has helped highlight the exclusions that framed colonial regimes of knowledge, including the contradictory tensions between the colonial state’s liberal speak on freedom and equality and its less than ideal working-out in a colonial terrain in which equal citizenship could not be granted to natives (Chatterjee, 1993).

Similar contradictions animate the multiple production of ‘child figures’ in colonial India. At one level, several colonial reports reflect the attention the colonial state drew to biological age as a generalisable threshold aimed at ‘protecting’ marginal children. For example, the Indian Factory Commission Report of 1908 provides early evidence of this language of protection. It endorsed the need to demarcate fixed thresholds of ‘age’ to indicate when children can work, to regulate their hours of work as well as proposed the establishment of ‘schools’ within factory premises. In fact, well-honed discourses from the metropole around particular populations of children and their protective disciplining and correction circulated in the colony and introduced ‘biological age’ as part of the scientific apparatus that worked to improve the lives of children of the poor. However, as the following discussion on ‘child figures’ disclose, this mobilisation of biological age was seldom consistent across institutional sites in which children required ‘protection’. While some of this inconsistency might have been because of the difficulties attached to determining a child’s exact age (given the lack of birth certificates and the newness of this numerical register), most of the arbitrariness was tied to caste and region-specific ‘cultural’ logics that were utilised by the colonial state to rationalise exceptions.

The following subsection includes a discussion on ‘juvenile delinquents’, as well as on other child figures that were produced by colonial anxieties around expanding access to schools. To demonstrate how widespread these exceptions were, the following examples are not focused on tracing the shifts in the imagination of the ‘child figure’ within one geographical territory. Instead, these draw on archival materials across a range of sites, including juvenile reformatories in various provinces and various efforts around expanding schooling. The intent of drawing on these varied contexts is to foreground the main argument that this chapter is making, around the multiplicity or intentional fluidity within which disparate groups of children were acted upon, despite the circulation of biological age as a new register aimed to signal ‘protection’ for marginal children in the colony.³

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Through a focus on the disciplinary technologies utilised by the colonial state to influence these children's 'conduct of conduct' (Foucault, 2009), I hope to highlight how the multiple production of the 'child figures' in colonial India emerged very much within a modern apparatus of 'schooling' and children's 'protection', that is sites that we currently associate with the gradual setting in place of a generalisable and normative 'childhood'.

*Reformatory schools and the figure
of the juvenile delinquent*

Reformatory schools in colonial India grew out of the recognition of the need to separate the young offender from the influences of more 'hardened' counterparts, a recommendation that Mary Carpenter had made during her 1867 visit to India. The Reformatory Schools Act was first passed in 1876⁴ and by 1899, several reformatory schools had been established in Alipore and Hazaribagh, Yerrowada, Chingleput, Bareilly, Jubbulpore, Gurdaspur and at Insien in Burma.⁵ In discussing the figure of the juvenile delinquent, this chapter aggregates archival materials from the various reformatories to broadly discuss the ways in which the state constructed this figure, the critical role played by 'biological age' and the disciplinary regimes set in place to produce trained labourers.

Reformatory schools in the colony need to be viewed in the context of debates in the late 18th and early 19th centuries in the metropole, around new philosophies of punishment and incarceration. The Benthamite shift to a carceral discipline directed at the mind rather than at the body meant that techniques of solitary confinement, regimented routines and uniforms came to replace ideas of whipping, branding and so on. The twin imperatives of deterrence and reform which dominated these debates on penal reform found an echo in the 1838 Report of the Committee on Prison Discipline in the colony. However, its implementation did not necessarily work within the 'humane' shift signalled by these Benthamite influences. Rather, prisons in the colony were primarily conceived in terms of administrative imperatives around the extraction of revenue and the maintenance of 'law and order' and given this, several of the proposals for Benthamite reform of penal institutions were rejected as impractical, inconvenient and unnecessary.

The need to understand colonial prisons as more than an inadequate imitation of penological practices in the metropole has been discussed at length by Arnold (1994). He argues that not only does sizable

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evidence of resistance by prisoners exist, but in large part, colonial authorities (out of a pragmatic choice) exercised selective control over prisons, which Arnold believes reflected their limited interest in penal discipline and reform. But this did not mean that it did not produce certain forms of knowledge about the colonised. Rather, Arnold points to the ways in which the specificities of penal regulation in colonial India relied on the ‘colonised body’ of the indigenous prisoner as a predominant site for colonial regulation of labour, medical observation and experimentation.

In the case of juvenile prisoners, prisons for girls were rare⁶ and male children were usually marked as victims of poverty, parental neglect and a more inflexible playing out of caste hierarchies. For example, the 1894 annual report of the Chingleput Reformatory School discusses juveniles as having, ‘inherited a more or less absolute want of moral sense which was aggravated by poverty, wicked associates and other disadvantages which the lowest classes of people are subject to’. It also remarked that a majority of boys had ‘marked facial peculiarities which pointed to strong animal instincts and to low mental and moral qualities’. It further added that the ‘great faults’ with these children was their propensity to steal anything eatable, particularly from the garden, as well as their proclivity for ‘fibbing’ which was viewed as one of the characteristic defects in criminals or moral weaklings.⁷ The recognition that the majority of crimes committed by these juveniles mainly pertained to ‘thefts against property’ and that these children were ‘victims’ of their circumstances quite naturally dovetailed into institutionalising an apparatus that would prepare them to earn an honest livelihood.

Mr E. V. Westmacott, the officiating Inspector-General (IG) of Jails in Bengal, believed that the reformatory school was not intended for the confinement of all juveniles. Instead, it was for those children who, there was reason to believe, would grow up to be criminals if confined to jails and released without any means of support. So this excluded from his purview those juveniles whose offences did not indicate depravity as well as those who had relatives, ‘able and willing to attend to their proper training’.⁸ It thereby sedimented the idea of those in reformatory schools as children whose parents lacked the necessary skills to properly socialise them. This construction of parents as lacking requisite skills was reinforced in the North-West Provinces and Oudh where a reformatory school, set up in 1889, was viewed as ‘most proper’ for those children who were ‘without proper parental and other control’.⁹ Similarly in Burma, a province that was reputed to have the highest number of juvenile criminals (282:1 million), the

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colonial state appointed Mr Paterson, the Commissioner of Prisons for England and Wales, to advice on the setting up of a Borstal School in 1926. The main anxiety behind the setting up a new institution in a province, where a Reformatory School (at Insien) as well as a juvenile jail (at Meiktala) already existed, was to take care of children in large towns who had parents, 'unable or unwilling to control them or no parents at all and who were leading a precarious life on the brink of the abyss of crime'.¹⁰

These constructions of native parents which produced them as ignorant, neglectful and criminal, allowed the colonial state to impute to their children certain characteristics. Additionally, it aided in the parallel marking of lower-caste boys as inherently different from their upper-caste counterparts. J Cruickshank, the IG of Prisons, commenting on inmates at the Juvenile Male Prison in Poona, stated that the very young convicts were drawn from the very poorest classes of society and were brought up by parents, 'having little regard for education or for the interest and welfare of those committed to their charge'.¹¹

In addition to parental apathy, the shifting logic that underlay the prison sentences these children received, often disclosed the harsh penal discipline within which the figure of the 'juvenile' was produced. As will be seen in the following example, seldom was biological age mobilised to signal a more ameliorative arrangement for these children. The fixing of biological age was critical to this sentencing of children not because of the working of *doli incapax*¹² but more in its role in attuning children to the regimes of discipline and training within reformatories. Writing in the 1880 annual report of the Alipore Reformatory School, A. D. Larrymore, vice-president of the Board of Management, described his ideal scenario around sentencing juveniles through describing the case of Elahee Buksh. Buksh, an accomplished pickpocket, had been nine years old when sentenced to three years imprisonment and would therefore only be 12 at his release. Larrymore believed that if left to his own whims, Buksh would surely soon return to the reformatory to serve another two to three years and that this second sentencing would be felt by Buksh as far worse than the first. Buksh would view detention as nothing else but imprisonment with forced labour and would try and escape. Therefore, a constraint 'which under other circumstances might have proved salutary' would, in Larrymore's opinion, 'lose its proper effect'.¹³ He therefore proposes an alternate scenario of 'the happiest kind' in which Buksh is sentenced to the reformatory school until 16 years of age in the first instance, with his seven years in the reformatory allowing him to grow increasingly capable of appreciating the moral and industrial training

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it offered. Growing up towards manhood in a constant state of order, discipline and industry, Larrymore opines, would allow Buksh to be ‘given back to the world with a predilection for that which is good and honest, and which has become so to say, his second nature’.¹⁴ Utilising Buksh’s example as a point of departure, Larrymore discusses the ‘principles according to which offenders should be selected’. These include determining the ‘circumstances’ of the offender (i.e. whether he has family or friends who can take care of him), institutionalising 11–14 years as the ideal age for children to be brought under moral and industrial training and finally sentencing all children to the reformatory until 18 years of age irrespective of the offence they committed and the age at which they are brought in.¹⁵

Not only did the biological age serve as an indicator of what the child was capable of learning when (i.e. as a universal psychosocial marking), but it also served the more perverse goal of securing their length of immersion in a programme of reform. While arbitrary shifts around children’s sentencing was easy to institutionalise, what proved difficult to pin down, in relation to this, was the physical age of the child. An 1896 report on delinquency in Bombay states that one of the greatest difficulties in implementing the 1876 Act was the task of determining the child’s age. The existing practice relied on parents to state the age of the child in court but the report noted that often parents lied about their children’s age to get a reduced sentence under the *doli incapax* clause.¹⁶ In cases where the magistrate was required to determine the child’s age, there was lack of clarity on whether this should be based on medical or other evidence or be based on the magistrate’s opinion, formed according to the best of his judgment which included gauging the adequacy of the sentence.¹⁷ As a new and distinctly modern marking of time in a child’s life, the biological age was intimately tied to the number of years that juveniles spent in reformatories. This motile circulation of age linked it to the child’s ideal immersion in the disciplinary apparatus, where it worked to signal the use of rational and scientific techniques that connected the children’s training to broader, generalisable psychosocial thresholds.

Expanding modern education to children of labourers

In the early 20th century, Lord Curzon’s efforts around expanding access to primary education complexly disclosed the limits of the colonial state’s ‘civilisational’ efforts to democratise knowledge within what they viewed as a caste-ridden society. The anxieties that underwrote these efforts often resulted in the broad-based institutionalisation of a

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parallel apparatus of modern schooling for specific groups of children, thereby paradoxically serving to produce several ‘child figures’ as a result of this democratisation (Balagopalan, 2014). One of these figures was the ‘coolie child’ and the report drawn up by W.M. Kennedy in 1906 – which enquired into the education of children of indentured labourers employed in tea plantations in Assam – exemplifies the stated and silent anxieties that underlay colonial efforts. Kennedy’s task was also to report on the extent to which ‘it is practicable to bring this class of children under instruction’, and he was instructed to ascertain the proportion of children employed in various estates of Bengal, East Bengal and Assam, the types of schools that exist for them, whether they were sent anywhere else to get an education, and to enquire into the causes that prevented the widespread opening of schools in these plantations. What is interesting about this Report is the ways in which it discusses the reluctance of the planters in setting up schools and simultaneously constructs coolie parents as uninterested in the schooling of their children. The lack of schooling facilities gets rearticulated within tropes of parental reluctance thereby framing the issue once again within cultural explanations that belie state responsibility. Discussing the coolie parent, the report states though philanthropists in England believe that the Indian coolie boy has a desire to be educated, a coolie boy attends school out of curiosity when first opened, after which attendance soon dwindles with the majority never entering school at all. Except for a few well-to-do *sardars*, the report states that no other parents are remotely interested in educating their children and would strongly oppose school if attendance interfered with the wage-earning capacity of their children (Kennedy, 1905).

The ‘coolie child’ is constructed as a figure who is expected to contribute to family earnings by doing light work on the estate and through assisting family members in cultivation and herding cattle. The Report viewed education as that which would make these children too proud to work with their hands and adduced that, as a result, these children would become a burden on their parents. Not surprisingly, this viewpoint was shared by the estate owners who believed that nothing was to be gained from educating these children. They strongly agreed that an education would dissuade a coolie child from work, with the consequence that on attaining manhood a potential coolie labourer would consider himself ‘too superior’ to perform manual work.

A similar sentiment is echoed in the schools set up for children of ‘agricultural workers’ or peasants in the Central Provinces (Bureau of Education, 1904). The increased enrolment of children in rural areas sat uneasily with the colonial state, because it increasingly came to

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realise that for most lower-caste children, entry into modern schools affirmed the possibility of a different future outside of manual labour. Colonial fears were linked less to its disinterest in producing more clerks or ‘babus’ and more to the rising nationalism in Bengal which had violently shown what the democratisation of a literary education might portend for colonial rule. To rein in the enthusiasm of agricultural labourers, the colonial state deliberately misread the small numbers of children enrolled in terms of the peasant parent’s disinterest in education and anxiety about the aspirational changes modern schooling contained. The state went so far as to frame the efforts of parents as being driven by their ignorance rather than intent. They declared that peasants viewed schooling as government ‘begar’ or ‘forced labour’ and had enrolled their children only to please government officials.¹⁸ The interest shown by the more influential castes like zamindars, traders and writers was not read within a similar logic, and the colonial state expressly declared that full-time schools had been started in rural areas to cater to the upper castes who had expressed a desire for these spaces for their sons.

Denzil Ibbetson, Chief Commissioner of Education in the Central Provinces, mobilised this constructed disinterest of peasants to plead that education be suited to the needs of the people since it was being forced down their unwilling throats. He further invigorated his plea by invoking the ‘hereditary bias’ and the ‘potent power of custom’ that had developed a sense of comfort among these lower castes and stated that parents preferred their children to tend cattle. Schooling began to be discussed as that which these communities believed made their children ‘unfit’ for manual labour since it deprived them of ‘the hardening effects of work in the fields at an early age’.¹⁹ Thus it was within the logic of meeting these parental demands that the colonial state justified its separate course of instruction for children of agricultural labourers based on a scientific study of agriculture. This practical model of schooling was enforced in all primary schools in the Central Provinces from 1900 onwards and worked through two mechanisms. One was to restrict instruction to three hours a day while upper-caste children attended school full time or twice a day, and the second was to devise a highly practical curriculum that shifted the instructional ideal from ‘knowledge for its own sake’ to preparing these boys for the ‘battle of life’ through ‘object lessons’ that were focused on ‘training the hand and the eye’.²⁰

Parents who were cultivators were less impressed with this practical curriculum and believed they could better train their sons in agricultural work. The parents desired an education through which their boys

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could enter a ‘soft’ respectable occupation and requested the state to remove their children from the school rolls when this demand was not met.²¹ However, the colonial state once again deliberately manipulated and publicised this withdrawal from schools as another instance of lower castes resisting literacy instruction in general. They also framed this as typical of these lower castes being frightened by the possibility that schooling might make their sons aspire to follow other trades than take to the plough.

A similar limiting of children’s aspirations through invoking parental anxieties can be seen in the case of ‘factory children’. Unlike the ambivalence that surrounded the schooling of coolie children in Assam, the colonial state was more adamant about schooling children of factory labourers. In 1904, the Buckingham and Carnatic Mills School in Perambore, Madras, began with a dozen half-timers, between 9 and 14 years of age, employed in the spinning room. Set up with the assistance of the Free Church of Scotland Mission, the management’s anxieties were centred on ensuring that these school boys aspired to nothing more than manual labour. Sent to school for half a day, the boys were expected to learn rudiments of English, reading, writing and arithmetic. To aid their learning of the language, industrial classrooms were fitted with machines used in different parts of the mill, with their English names printed at the bottom. This learning, it was hoped, would produce the ‘intelligent working of machinery’ and make the interpreter or the *arkatti*, whom the management viewed as inciting worker unrest, redundant.²² However, contrary to the management’s hopes, a lack of attendance plagued these schools, forcing them to set up an incentive scheme of giving the boys access to damaged pieces and short lengths of cloth, which they could stitch into vests, shirts and coats. Despite these incentives, the school’s inability to attract more than 50 per cent of the expected students meant that the modern enterprise was often less welcome than the state imagined it would be.

Though gaining immediate employment and getting promotions in the future were part of the school’s training package, parents were reluctant to have their children participate. This disclosed an ambivalence that was not easily explained within a colonial reading of native populations as those that desired their children to work. To avoid the embarrassment of low enrolment, Dr Saisse of the East Indian Railway Company introduced compulsory attendance in the industrial schools that he set up at the collieries in Giridih. The first school was started in 1888 with the ambition of developing better workers for the mines, as Dr Saisse believed, ‘[T]he adult workman (is) too old to learn, but hoped by educating their children to effect a substantial improvement

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in the intelligence of the next generation and to instil into them some form of discipline'.²³ In 1910, only 52 of the 1,758 boys who attended primary school remained enrolled until they reached the industrial school. The colonial administration read this native lack of interest in these schools within existing discourses on the lassitude of the natives and their 'disastrous contentment'.²⁴

However, in stark contrast to what this 'contentment' implied, at Perambore, the first result of teaching the three Rs was reported to have inculcated in the boys 'a scholar's ambition to become a writer in the mill' or a cloth-marker. Though these jobs carried no scope for further promotion, the mill manager believed the boys desired them because they could be performed 'sitting, with a coat on'! Colonial anxiety related to directing children's ambitions into something more 'useful and industrial' was sought to be addressed by setting up evening lectures for full timers that were more 'technical'. The East India Railway Company felt no pressure to couch its need to mould these young boys into more efficient workers and prided itself on providing scientific training that would 'get the best' out of these boys' labours. Characterising these schools as 'the happiest places for these children', the management believed that with the help of the industrial classes, the boys were learning the 'dignity of labour' unlike their family members who did not know the 'value of work'.²⁵

Though the periodic publication of the Indian Factory Labour Commission Reports did play an ameliorative role of subsequently producing Factory Acts that regulated the number of hours children could work, it paradoxically also served as something that continually reiterated the desire of Indian parents that their children be engaged in wage labour. The 1908 report stated quite firmly that 'children employed in textile factories are subjected to a severe strain during their working hours' and that they had been 'struck with the tired and listless look of the children'. Despite this, they did not recommend raising the age at which children worked as bobbin shifters, which was as young as nine. Instead, they justified their assessment of children needing to work saying,

It has repeatedly been pointed out that *parents in India desire their children to become wage earners at the earliest possible moment*, there is no question of conscious cruelty, but children are in fact made to work as soon as they are capable of earning even the smallest addition to the family income. In these circumstances, if the minimum age limit for the employment of children in factories were increased, it is inevitable that they would merely be forced to

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perform other and probably more laborious work until they had attained the age qualifying them for factory employment.

(Italics mine)²⁶

Added to this was the fact that many company owners who testified before the commission said that setting up formal schools for these children would be unappreciated by parents, who would certainly ‘object’, and would also be resented by the children, who take to work ‘like children at play’.

As evident in the case of the four child figures discussed earlier, namely, the juvenile delinquent, the coolie child, children of peasants and factory children, the modern apparatus of schooling and protection was deliberately distorted to naturalise the learning of labour in the lives of marginal children in the colony. Reproducing children as better-trained and educated labourers within an emergent language of child ‘protection’ meant, that the colonial state worked both in and across different sites to systematically set in place discursive and institutional arrangements that purported to ‘improve’ the lives of children, but instead fixed their futures within a more scientific learning of labour.

Colonial child figures/multiple childhoods – ambiguous accommodations of difference

Colonial modernity’s mediation of biological age and schooling is central to understanding why these modern markers worked less to gather disparate child figures under a more unifying sign of ‘childhood’ (as was increasingly the case in France and England at about this same time). Instead, the colony produced several sites of modern schooling that kept alive the multiplicity of the child figure by producing this within contradictory logics of the desire and limitation of native parents and thereby signalled the universal register of ‘childhood’ as both impossible as well as unnecessary in these lives. It wasn’t that these populations of children were not acted upon by the colonial state but it was precisely in the actions taken by the state around ‘protection’ that these multiple child figures emerged. Therefore, it wasn’t the absence of the modern register of ‘biological age’ but more its continuous deployment – as both ‘threshold’ and ‘measure’ – through which the colonial state mobilised a new, scientific discourse of ‘child protection’. Though these ideas around children requiring protection drew from emerging and shifting understandings of psychosocial development of the ‘child’ in the metropole, this ‘universal’ child figure was

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continuously broken down in the colony to accommodate the cultural particularities of native children and the perceived desires of their parents. Thus, as ‘threshold’ biological age circulated as a number that marked when native children could undertake labour-related tasks, with the motility of these thresholds linked to both the particular requirements of different industries and, more crucially, apparent demands by parents. Moreover, as ‘measure’ – or determining the correct amount of disciplining, training and sentencing necessary to reform and instruct children – ‘biological age’ worked as an ambiguous yardstick that got continually adapted, depending on the shifting perceptions of administrators and legal officials regarding the child’s community. It was within this combination of extraction and apparent liberal adjustment that marginal native children got constructed as constitutively incapable of inhabiting a universal, singular shared threshold of ‘childhood’.

Though this fluidity was constitutive of the colonial apparatus of discipline, it did not necessarily undermine the authority of the state’s scientific and legal understanding of children’s physical and psychosocial development. Instead this fluidity got attributed to the colonial state’s liberal accommodation of the ‘cultural difference’ that native childhoods represented. As a result, the everyday cultures of native children were viewed as being outside of and therefore having little to contribute to, a scientific, legal and what would develop into an assumed universal, understanding of ‘childhood’. It is the strong trace of this particular division of children’s lives across the world that we continue to see in the current research on childhoods and particularly in ethnographic research that reads these lives within ‘cultural’ contexts that are delinked from the larger and more historical workings of state and capital.

This earlier moment of multiplicity discloses children’s lives in the colony as productive sites that were seldom isolated from the shifting workings of state and capital. Foregrounding this productivity means that any ethnographic exploration into children’s lives in India in the present, and more generally in the global South, would need to engage colonial and postcolonial archives in order to disaggregate ‘culture’ as always contingent and subject to the workings of power. The multiplicity of childhoods that were produced as part of the exercise of modern colonial power should hopefully force us to critically interrogate the more liberal ‘cultural’ reading of children’s lives that underlies the paradigm of ‘multiple childhoods’. This would allow for a more radical reconstellation of the seemingly liberal culturalisation of childhood into that which continually recognises its tendency towards a

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relativist interpretation of children's lives. If we understand the 'child figure' as a productive site in the working out of a different modernity in ex-colonies, then investigating these colonial histories of child protection and biological age will allow us to rethink the current fluidity around biological age in the global South. Recognising colonialism as an earlier historical moment that produced multiple child figures – as part of processes of extraction and disciplining – would force us to reanalyse the extent to which the current framework of 'multiple childhoods' condones larger structural exclusions (the recent legislation and associated discussions around family's need for children's work is a good example of this simplification) that continue to affect the lives of marginal children.

More importantly, broader recognition of this earlier more perverse circulation of biological age, and its being intimately tied to the logics of state and market, would compel policy-makers to historicise the current absence of a normative childhood in the global South. Factoring in the recognition that 'particular' child figures are not outside the circulation of biological age, but very much a product of the historical working out of an alternate modernity, might persuade policy-makers to move away from an evolutionary construction of a singular modernity. This viewpoint allows for the current circulation of 'biological age' as a necessary but not yet available register in the lives of marginal children in India. Enrolling these marginal children in school is a key imperative of 'protection' with less attention paid to the quality of education being made available. Similar to the uneven and multiple working out of the register of biological age in colonial India, it is the iniquitous and multiple spaces of school in which marginal children currently enrol that represent liberalism's new and contradictory accommodations of 'protection'. It is hoped that this chapter's attempt at historically deconstructing the idea of 'multiplicity', by situating its emergence within a more fraught, imperial colonial imaginary, as well as its effort to foreground 'child figures' rather than 'childhood' will encourage further research on children that historicises current legislations, policies and practices affecting marginal children. This historicising might move us away from the naturalising of these children's everyday lives that both 'multiple childhoods' and policy-making around children ironically appear to share. This would hopefully allow us as researchers to critically reread the current 21st-century landscape of efforts to 'educate' and 'improve' the lives of marginal children in India through a more deliberate focus on postcolonial capitalism, the informal economy and the reconfiguration of the state.